

		year's time. After considering the totality of the circumstances, the Court finds Plaintiffs' conduct to be willful, preceded by a history of abuse, and it has caused Defendants prejudice. Less severe sanctions have not produced compliance. Additionally, Plaintiffs did not attempt to comply with their discovery obligations after the motion was filed. Nor did Plaintiffs bother to oppose the motion. "[S]anctions may not be imposed solely to punish the offending party." (<i>Kwan Software Engineering, Inc. v. Hennings</i> (2020) 58 Cal.App.5th 57, 75.) Imposing additional monetary sanctions would solely punish Plaintiffs and would not be for the purpose of compelling compliance. The case is DISMISSED. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Clerk to give notice.
5	Malakoutian vs. Ruiz 30-2026- 01578846-CU- PT-CJC	Order to Show Cause re: Preliminary Injunction Plaintiffs' Teyebah Malakoutian, Demetric Willoughby, and Robin Jones motion for a preliminary injunction is CONTINUED to 10/2/2026. Plaintiffs submitted substantial additional evidence which includes 5 additional declarations and over 100 pages of exhibits in support of their Reply. "The general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers." (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537 (<i>Jay</i>).) "Points raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument." (<i>American Drug Stores, Inc. v. Stroh</i> (1992) 10 Cal.App.4th 1446, 1453.) "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case. . . ' and if permitted, the other party should be given the opportunity to respond." (<i>Jay, supra</i>, 218 Cal.App.4th at p. 1538.) In lieu of disregarding the additional evidence submitted with the Reply, the Court will continue the hearing and allow Defendants to respond to the additional declarations filed with the Reply. Defendants may file a supplemental

		opposition no later than 9 court days prior to the continued hearing. No additional briefing will be considered. Temporary Restraining Order shall remain in effect until the next hearing. Clerk to give notice.
6	Truong vs. Nguyen 30-2025- 01537299-CU- RI-CJC	Demurrer to First Amended Complaint The demurrer to first amended complaint (FAC) of defendants Uy Nguyen, Teletron, Inc., Teletron Global, Inc., and Thanh Dang, is SUSTAINED with 10 days leave to amend. The entire FAC is uncertain. The court cannot discern which plaintiff is suing which defendant for which cause of action. The court cannot determine whether the alleged conduct falls within the purview of 47 U.S.C. section 230. The FAC does not include sufficient detail of dates of alleged conduct for purposes of testing whether plaintiffs have complied with the statutes of limitation. The court cannot determine what images were used, when, which statements were published, when, which defendant hired or supervised Tran or which plaintiff suffered injury, or what that injury is. The court cannot determine whether the information was streamed on the internet or broadcast on television or both. These are but a few of the uncertainties. The entire pleading will likely need to be re-drafted from the ground up to survive future attack. If plaintiffs choose to amend, plaintiffs are ORDERED to file a red-lined and clean version of the amended pleading. Clerk to give notice.
7	Zheng vs. Zheng 30-2025- 01488963-CU- NP-CJC	The instant case is one for malicious prosecution, which alleges a previous case for malicious prosecution over a domestic violence restraining order (DVRO) was malicious. Plaintiffs Gene Zheng and May Zheng, and Defendant Jack Zhen Zheng, are siblings. Defendant Nigel Burns is an attorney whose firm represented Jack in the first malicious prosecution action. Defendant Nigel Burns's Demurrer to Complaint Defendants Nigel Burns and The Law Offices of Nigel Burns' Demurrer to Plaintiff's Complaint is OVERRULED.